REQUEST FOR PROPOSAL

2025-RFP-0012

County of Sacramento

9660 Ecology Lane

Sacramento, CA 95827

RELEASE DATE: April 28, 2025

DEADLINE FOR QUESTIONS: May 5, 2025

RESPONSE DEADLINE: June 2, 2025, 3:00 pm

RESPONSES MUST BE SUBMITTED ELECTRONICALLY TO:

https://secure.procurenow.com/portal/saccounty

County of Sacramento
REQUEST FOR PROPOSAL
Election Management System

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1. Definitions

Response: The written, signed and sealed complete document(s) submitted according to the proposal instructions. Response does not include any verbal or documentary interaction apart from submittal of a formal Response.

Request/Proposal/Bid: The completed and released solicitation, including all subsequent addenda, made publicly available to all prospective proposers.

We/Us/Our: Terms that refer to the County of Sacramento, a duly organized public entity. They may also be used as pronouns for various subsets of the County organization, including, as the context will indicate:

- Purchasing - the Contracts and Purchasing Services Division of the Department of General Services.
- Department/Division – The department or division requesting the goods or services contained in this request, for which this PROPOSAL is prepared and which will be the end user of the requested goods or services.
- Constituency – the client base or County population which may benefit from the procurement of goods and/or services requested herein.

You/Your: Terms that refer to businesses/individuals submitting a response. The term may apply differently as the context will indicate.

- Supplier - A business entity engaged in the business of providing services.
- Proposer - A business entity submitting a Response to this proposal. Suppliers which may express interest in this proposal, but who do not submit a Response, have no obligations with respect to the proposal requirements.
- Contractor - The Proposer(s) whose Response to this proposal is evaluated as meeting the needs of the County. Contractor(s) will be selected for award, and will enter into a contract(s) for provision of the services described in this proposal.
- Contractor's Employee - All persons who can be offered to provide the services described in the proposal. All employees of the Contractor shall be covered by the insurance programs normally provided to persons employed by a company (ex: Worker's Comp, SDI, etc.).

Mandatory: A required element of this request/proposal/bid. Failure to satisfy any element of this request/proposal/bid defined as "mandatory" will disqualify the particular response.

Default: A failure to act as required by any contract resulting from this request, which may trigger the right to sue or may excuse the other party's obligation to perform under the contract.

Cancellation/Termination: A unilateral or mutual decision to not complete an exchange or perform an obligation under any contract resulting from this request.

"Or Equal": A statement used for reference to indicate the character or quality desired in a requested product or service. When specified in a proposal document, equal items will be considered, provided the response clearly describes the article. Offers of equal items must state the brand and number, or level of quality. When brand, number, or level of quality is not stated by proposer, the offer will be considered exactly as specified. The determination of the Purchasing Agent as to what items are equal is final and conclusive.

2. Introduction

2.1. Summary

The County of Sacramento Registrar of Voters is dedicated to serving the citizens of Sacramento County by ensuring a fair and transparent election process. Our vision for a Voting System is to implement a solution, or a set of solutions, that strategically fits a Vote Center voting model. By leveraging modern technology, we aim to make the process transparent, secure, and cost-effective. The ideal solution will seamlessly integrate with existing components as needed, and these integration areas are detailed in the system/component requirements matrix.

2.2. Background

County of Sacramento Jurisdiction Environment

The County of Sacramento is located in the northern part of the central valley and has an estimated population of 1,585,055. The County seat is in the City of Sacramento, which has been the state capital of California since 1854. The County is home to seven (7) cities: Sacramento, Elk Grove, Citrus Heights, Folsom, Rancho Cordova, Galt, and Isleton.

Sacramento serves approximately 906,346 voters which includes an extensive population who primarily communicate in a language other than English. Currently four (4) languages are required under the Federal Voting Rights Act on the County's ballot including Spanish, Chinese, and Vietnamese in addition to English. Additionally, ten (10) languages are required under Elections Code §14201: Hmong, Korean, Punjabi, Tagalog, Hindi, Japanese, Laotian, Mien, Telugu, and Urdu. These numbers are expected to increase in the coming years.

Registrar of Voters Environment

The County of Sacramento Registrar of Voters is responsible for conducting all local, city, county, state, and federal elections for its citizens, averaging two elections per year. Beginning in 2018, Sacramento County adopted the Vote Center model of voting as allowed by the Voter's Choice Act under California Senate Bill (SB) 450 and subsequently SB1450. This change was driven by the need for greater flexibility and more voting options, and a quickly growing number of voters who requested Vote by Mail ballots.

The County's current Vote by Mail and Vote Center based solution is expanding. Updated equipment designed for mobility and quick deployment at a growing number of Vote Center locations is necessary to keep up with increases in Sacramento County's voter registration rolls. The Registrar of Voters' commitment to Sacramento County voters requires a convenient, accessible, and efficient voting system solution that ensures accuracy, security, and transparency in the voting process.

Voting Volume Statistics

County of Sacramento voters elect hundreds of municipal and special district officers, school board members, and superior court judges, and help elect representatives in county, state, and federal contests. The number of candidates per major election averages 250 with up to eleven (11) local measures. One hundred eighty-five (185) ballot types were used by the County for the 2024 General Election.

The County is responsible for administering countywide elections for approximately 906,346 registered voters. In the 2024 Presidential General Election, the County experienced high voter turnout at 75.15%. Of the 668,416 ballots cast, 492,312 were vote-by-mail ballots and 176,104 were ballots cast at one of 88 Vote Centers. On Election Day, approximately 250,735 Vote by Mail ballots were dropped off in the 60 Drop Boxes strategically located throughout the County. Election materials were provided in English, Spanish, Chinese, Vietnamese, Hmong, Korean, Punjabi, Tagalog, Hindi, Japanese, Laotian, Mien, Telugu, and Urdu. Below is a look at the Vote Center and Drop-Box statistics from recent elections:

Election	Registered Voters	Total Ballots Turnout	Percent Turnout	Number of Vote Centers
2020 Primary Election	824,415	409,773	49.7	84
2020 General Election	896,090	729,526	81.4	84
2022 Primary Election	863,423	336,724	39.0	87
2022 General Election	868,620	484,757	55.8	87
2024 Primary Election	869,495	347,208	39.9	88
2024 General Election	907,328	668,416	75.2	88

Election	Total Ballots Returned by Drop-Box
2020 Primary Election	126,371
2020 General Election	387,653
2022 Primary Election	137,776
2022 General Election	126,493
2024 Primary Election	100,253
2024 General Election	250,735

Services to be provided

Adhering to factors of growth, trends, and the County's desire to enhance voter services, Sacramento County adopted the California Voter's Choice Act (Senate Bill 450) of 2016, which changes the way Californians cast their ballots. As background, the California Voter's Choice Act is a permissive California election law requiring election officials to automatically mail a vote-by-mail ballot to all registered voters for each election. Election officials are required to replace polling places with a certain minimum number of ballot drop-off locations and Vote Centers. In future County elections, there will be over 70 drop-off locations and approximately 100 Vote Centers.

The solution must comply with the California Voter's Choice Act and each Vote Center must be able to perform certain voter-related services, including enabling voters to:

- Cast a ballot in-person
- Drop-off their voted ballot
- Access same-day voter registration
- Receive a replacement ballot

- Use accessible voting machines
- Access language assistance and translated materials

More details about the specifics of the Voter's Choice Act can be found on the California Secretary of State's website at: http://www.sos.ca.gov/administration/news-releases-and-advisories/2016-news-releases-and-advisories/california-legislature-sends-landmark-election-reform-bill-governor-brown, which includes a detailed press release with links to the Voter's Choice Act requirements.

California Elections Code section 19006(a) further requires the County use a voting system that the Secretary of State has approved for use in California. For the purposes of this RFP, the County will only consider voting systems that are certified by the Secretary of State (SOS), for use in California, at the time of the award of the RFP. This certification shall include all Voting Systems, parts of a Voting System, and Ballot Marking Devices.

For additional information on Voting System Certification in California, go to: http://www.sos.ca.gov/administration/regulations/current-regulations/elections/voting-system-certification-regulations/.

The Voting System shall also meet all requirements of federal law and State of California law/rules that address accessibility of Voting Systems. These laws/rules include:

i. The Help America Vote Act (HAVA) of 2002
ii. The Americans with Disabilities Act (ADA) of 1990
iii. The Federal Rehabilitation Act
iv. The Voting Rights Act (VRA) of 1965
v. The Election Assistance Commission's Voluntary Voting System Guidelines (VVSG)
vi. State of California Election Code

The Proposer is to customize, configure, test, implement and support a Vote Center solution that fully complies with State and Federal requirements.

2.3. Contact Information

Chris Anderson
Senior Contract Services Officer

9660 Ecology Ln.
Sacramento, CA 95827
Email: andersonch@saccounty.gov
Phone: (916) 874-7034

Department:
DGS: CAPSD - Procurement

Department Head:
Brandalyn Tramel
Purchasing Agent

2.4. Timeline

Release Project Date	April 28, 2025
Question Submission Deadline	May 5, 2025, 3:00pm
Addendum Issued (if necessary)	May 12, 2025, 3:00pm
Submission Deadline	June 2, 2025, 3:00pm
Award Contract	July 30, 2025

3. Proposer's Instructions

General Format: Respond to all requests for information and completion of forms contained in this Request for Proposal. You may use additional sheets as necessary. A qualifying response must address all items. Brochures and advertisements will not be considered a complete reply to requests for information and will not be accepted as such. Proposer is solely responsible for accuracy and completeness of proposal response and for electronically separating confidential documents when submitting their response through SacCountyEbids. Responses considered incomplete may be rejected.

Alteration of Proposal Text: the original text of this proposal document, as well as any attachments, amendments or other official correspondence related to this proposal document, may not be manually, electronically or otherwise altered by proposer or proposer's agent(s). Any response containing altered, deleted, additional or otherwise non-original text will be disqualified.

Preparation of Response:

A. All responses must be signed by an authorized officer or employee of the responder.

B. Responses must be submitted prior to the specified date and time, using the SacCountyEbids. Responses delivered by hand, fax, telephone, e-mail, or any postal carrier will not be accepted. If bidder uploads a file to SacCountyEbids, it is bidder responsibility to ensure the file is not corrupt or damaged. If County is unable to open an attachment because it is damaged, corrupt, infected, etc., it may disqualify bidder's submission. See this training guide for guidance entering your online response.

C. Time of delivery must be stated as the number of calendar days following receipt of the order by the proposer to receipt of the goods or services by the County.

D. Time of delivery may be a consideration in the award.

E. Prices will be considered as net if no cash discount is offered. If a discrepancy between the unit price and the item total exists, the unit price prevails.

F. Shipping Terms: FOB Destination; Payment Terms: NET/30.

Confidential Information/Public Record: All responses become property of the County. All responses, including the accepted proposal and any subsequent contract, become public records per the requirements of the California Government Code, Sections 6250 -6270, "California Public Records Act". Proprietary material must be clearly marked as such. Pricing and service elements of the successful proposal are not considered proprietary information.

The County will treat all information submitted in a proposal as available for public inspection once the County has selected a contractor. If you believe that you have a legally justifiable basis under the California Public Records Act (Government Section 6250 et. seq.) for protecting the confidentiality of any information contained within your proposal, you must identify any such information, together with the legal basis of your claim in your proposal, and present such information **separately** (see "Confidential" section in Vendor Submissions) as part of your response package.

The final determination as to whether the County will assert your claim of confidentiality on your behalf shall be at the sole discretion of the County. If the County makes a determination that your information does not meet the criteria for confidentiality, you will be notified as such. Any information deemed to be non-confidential shall be considered public record.

4. Basis for Award

This proposal award will be determined by factors other than price alone. The County's sole purpose in the evaluation process is to determine from among the Responses received, which one is best suited to meet the County's needs. Any final analysis or weighted point score does not imply that one proposal is superior to another, but simply that in our judgment the proposal(s) we select offer(s) the best overall solution for our current and anticipated needs. The County reserves the right to make modifications to any scoring and/or weight structure prior to the evaluation of responses. The responses will remain sealed during the proposal evaluation period, and will be made available for public inspection upon notice of proposal award.

Bid responses will be considered valid for a period of 120 calendar days after bid closing date above.

Note: All specifications, terms and conditions of this request will apply to any resulting order.

4.1. Scoring Criteria

Proposals will be scored on pricing and other factors in your proposal such as ability to meet the requirements of the RFP, experience, references, risk assessment, etc. Contract(s) will be awarded to the highest scoring proposer(s).

4.2. Proposal Award

Any exceptions to the requirements of this RFP must be listed in the Solicitation Exceptions response of the Vendor Submissions section of this solicitation.

The County reserves the right to make a single award, multiple awards, or no award at all to this RFP, or to procure any materials, equipment or services specified in this RFP by any other means, or to determine that no project will be pursued. In addition, the RFP may be amended, canceled, or reissued as necessary to meet requirements. The County reserves the right to waive or correct any informalities and minor irregularities in proposals received. The County reserves the right prior to proposal submission deadline, to modify all or any portion of the selection procedures, including deadlines for accepting responses, the specifications or requirements for any materials, equipment or services to be provided under this RFP, or the requirements for contents or format of the proposals.

The evaluation factors reflect the totality of considerations to be used in evaluating the requested Proposal responses. While cost is important, other factors are also significant, and the County may not select the lowest cost proposal. The objective is to choose the proposal that offers the highest quality product and services and will achieve the project's goals and objectives.

4.3. Evaluation Phases

All proposals will be evaluated by a County designated Evaluation Committee consisting of key County stakeholders. All proposals will be evaluated using the same criteria and with the same amount of possible points. Evaluations will be based on the criteria listed below, which corresponds to information requested in various sections of the proposal:

Phase 1

- Risk assessment (pass/fail)
- Attachment A-E (as applicable)
- Appendix S Information Security Requirements

Phase 2

- Product Demonstration
- Total Costs Appendix I (Lot A-E as applicable)
- Proposer's References

The evaluation process will be completed in two phases. The first phase will evaluate the timely submitted written proposals included in Attachment A-E as applicable to the proposal. Proposals that do not include all relevant required forms and sections, or do not meet minimum qualifications, are subject to rejection without further evaluation. Based on the scores from the proposal evaluation, the Evaluation Committee will determine which Proposers will be invited to participate in the second phase.

The second phase will evaluate proposer demonstrations, cost and customer references. Phase 2 will consist of in-person product/ Microsoft Teams video conference demonstration from invited Proposers. The demonstrations may be held on-site at a County facility. Proposer demonstrations will be scripted so that each Proposer follows a standardized outline; the County is not interested in a corporate or sales presentation. Proposers must be prepared to demonstrate their understanding of any requirement outlined within the proposal. The County reserves the right to ask additional questions during interviews to clarify the scope and content of the written proposal.

It is recommended that proposer's vet their references carefully, the County will contact all references.

Points from Phase 1 (proposal review) will not be factored into the Phase 2 (interviews, cost and references) evaluations.

During the course of evaluations, the Evaluation Committee may:

• Choose to contact officials from other jurisdictions regarding the Proposer, their prior work experience, and their ability to successfully complete the scope of services. The County may coordinate independent site visits to other jurisdictions to understand the product and services in a working environment.

• Enlist properly vetted persons as subject matter experts to consult on specific requirements within the RFP.

• Request clarification or additional information from a Proposer in order to assist in the evaluation process. This process may not be used as an opportunity to submit missing documentation, change pricing, or make major revisions to the original response.

• Request work product examples for any documentation deliverables outlined in this proposal.

• Require changes in the scope of services, as deemed necessary by the County, before Contract execution.

• Invite additional Proposers from Phase 1 to participate in Phase 2 evaluations.

5. Final Acceptance

Equipment/Supplies/Services

The County of Sacramento will agree to final acceptance only after the supplied equipment, product or service is tested and is found to perform within acceptable standards of operation, is in compliance with all published and implied performance standards, and is considered by the County to be ready for practical application.

6. Project Details

6.1. Important Instructions for Electronic Submittal

The County is accepting electronic bid submissions. Bidders shall create a FREE account with OpenGov Procurement by signing up at Sign Up (opengov.com). Once you have completed account registration, browse back to this page, click on "Submit Response", and follow the instructions to submit the electronic bid.

6.2. Downloading Required Documents

All documents must be downloaded from the OpenGov website, attempting to download documents from the downloaded RFP document will return an error message. Opengov is not owned or maintained by Sacramento County, if you experience technical difficulties, please use the help chat function in the lower right-hand corner of the Opengov screen. All proposers are advised against waiting until the last minute to upload their responses as the proposal due date is a hard stop.

6.3. Scope of Work or Project Details

The County is looking for solutions for the following Voting System Components:

A. **Remote Accessible Vote by Mail Ballot Management [PROPOSER TO PROVIDE DETAILED SCOPE OF WORK WITH DELIVERABLES AND DELIVERY MILESTONES IF OFFERED]**

B. **Vote Center Check-In Management [PROPOSER TO PROVIDE DETAILED SCOPE OF WORK WITH DELIVERABLES AND DELIVERY MILESTONES IF OFFERED]**

C. **Voting System and System Subcategories [PROPOSER TO PROVIDE DETAILED SCOPE OF WORK WITH DELIVERABLES AND DELIVERY MILESTONES IF OFFERED]**

D. **Vote Center Ballot Printing On Demand [PROPOSER TO PROVIDE DETAILED SCOPE OF WORK WITH DELIVERABLES AND DELIVERY MILESTONES IF OFFERED]**

E. **Election Results Reporting [PROPOSER TO PROVIDE DETAILED SCOPE OF WORK WITH DELIVERABLES AND DELIVERY MILESTONES IF OFFERED]**

F. **Security Requirements [PROPOSER TO COMPLETE SUBCATEGORY RESPONSE CODE AND DETAILED RESPONSE FOR EACH REQUIREMENT REFERENCE ID.**

A. **Scope of Proposer Services**

The Proposer must provide the Services scope of this project in a professional manner using only individuals of suitable training and skill. The Proposer shall provide the following services within the six Voting System Solution Components (a-f) as follows:

i. System development, delivery, installation, testing, and appropriate operational diagnostics.

ii. Software and hardware improvements, upgrades, and modifications throughout the term of the agreement.

iii. County staff training. Initial training and supplemental training concurrent with any improvements, upgrades or modifications to any part of the system.

iv. Outreach component with an emphasis on familiarizing the County's residents with the Proposer's system(s), using a variety of media-ready messages and materials.

v. Complete system testing during minor elections within the County. Should the County not hold a minor election with which to fully test the system, the Proposer will provide a comprehensive test election to fully exercise the system.

vi. Financing options for the acquisition of the proposed system.

1. System Instruction and Training Program

The Proposer will provide a comprehensive program with documentation (written procedures) to train County staff in all aspects of the use of the proposed systems, and with all systems updates. After this training, County staff will be able to fully utilize and support the proposed system without the intervention of Proposer staff. Training is to include certification of selected VRE staff. In addition, Proposer shall provide a variety of instructional materials on the use of the system for dissemination to the County’s electorate.

2. Primary and Supplemental Services

The proposer agrees to provide services to the County required for the development, implementation, and continued support of the system during the term of the agreement. These services will include any supplemental services that are requested by the County and added to the scope during the proposal period or supplemental services that the Proposer deems a requirement to deliver quality services. The Proposer shall provide training documentation and written procedures with system updates.

3. Prime Proposer Services

The County prefers one Proposer to act as a Prime Proposer with total responsibility for the Proposed Voting System or individual Solution Component(s). However, the County will allow Proposers to bid on individual Services with full responsibility for those Services and its complete integration with other inter-related Services. The successful Proposer must assume single source, i.e., turnkey responsibility, for either the project as a whole or, if bidding on individual Services, for those individual Services and will be the sole point of contact for all Proposed System or services (if bidding on a Services) including delivery, installation, operation, building modifications, testing, training, warranty, maintenance, problem determination, and resolution of the Proposed System or individual Solution Component(s). Since there are several Solution Components on which Proposers can choose to bid, there could be one or multiple Prime Proposers awarded. See list of Solution Components on page 4.

Proposers must clearly explain planned use of subcontractors in their Proposal, including terms of any subcontract, capabilities, experience, and portion of the work to be performed by the subcontractors. The Proposer, as Prime Contractor for either the project as a whole or individual Services, is responsible for Contract performance whether subcontractors are used. The awarded Proposer(s) will be the sole point of contact (either for the project as a whole or individual Services) for County about contractual matters including the performance of services and the payment of any and all charges. Current employees of the County may not participate as resources for subcontractors of the Proposer.

4. Deliverables

The Deliverables for this project are to be the products and services necessary for the successful acquisition and implementation of new voting technology for the County and the conducting of successful elections in 2026 and beyond with this new technology. The Proposer is to provide a list of proposed Deliverables and estimated timelines for each, including certification of any solution or component requiring Voting System Certification by the California Secretary of State's Office. Additionally, in order to evaluate the ability of the Deliverables to meet the County's requirements, the Proposer is required to complete the Solution Components response section below.

5. Solution Component Responses

The Proposer must complete the section(s) below for each of the Solution Components section they are proposing. Additionally, <u>every</u> Proposer, whether responding to one or more of the Solution Component sections, must respond to the Security Requirements at the end of this section.

REQUIREMENTS MATRIX INSTRUCTIONS

The matrices included in the "Vendor Submissions" section of this RFP were developed to assist Proposers in sharing information about proposed Voting System Solutions Components and whether they meet the needs of the County of Sacramento. This matrix has been designed to be both as simple as possible and as comprehensive as possible for all Parties involved in responding to this RFP and in reviewing and scoring the responses. Proposers are encouraged to provide detailed responses to these items.

The Proposer must assign a Subcategory Response Code to each listed solution requirement in the Solution Component section for which they are submitting a proposal, using only the values of 1, 2, 3. The Subcategory Response Codes can be placed directly in the matrices provided. The Response Code values and meanings are described as follows:

1 – **Yes.** The proposed solution ***provides full functionality for the requirement***. Some configuration may be necessary, but not customization. This functionality is considered part of the base solution cost.

2 – **Yes with Customization**. The proposed solution ***provides partial functionality for the requirement***. Customization and additional costs are required to meet full functionality and ***customization is being proposed***. In such cases, the Proposer shall provide a description, in the Proposer Response column, of the partial functionality provided. If customization would cause a certification issue, please explain in the Proposer Response column. Customization Costs to provide complete functionality shall be included in the Cost Proposal in the Customization Cost category.

3 – **No.** The specific requirement is ***not met, and the Proposer does not propose a customization or service to meet it***. In such cases, the Proposer shall provide in the Proposer Response column an explanation of the reason(s) for not proposing customization to meet the requirement, including any potential workaround options.

7. Vendor Submissions

7.1. Proposal Requirements*

Did you read through and confirm that you met all of the proposal requirements?

☐ Yes
☐ No

*Response required

7.2. Please confirm that your company will accept the County's contract terms and conditions

☐ Please confirm

7.3. Attachment A - All proposals for "Lot A" must download, complete and upload this document, no substitute documents will be accepted.

Please download the below documents, complete, and upload.

- Attachment_A_-_Qualificatio...

7.4. Appendix I Lot A Pricing Schedule - All proposals for "Lot A" must download, complete and upload this document, no substitute documents will be accepted.*

Please download the below documents, complete, and upload.

- Appendix_I-Lot_A_-_Pricing_...

*Response required

7.5. Attachment B - All proposals for "Lot B" must download, complete and upload this document, no substitute documents will be accepted.

Please download the below documents, complete, and upload.

- Attachment_B_-_Qualificatio...

7.6. Appendix I Lot B Pricing Schedule - All proposals for "Lot B" must download, complete and upload this document, no substitute documents will be accepted.*

Please download the below documents, complete, and upload.

- Appendix_I-Lot_B_-_Pricing_...

*Response required

7.7. Attachment C - All proposals for "Lot C" must download, complete and upload this document, no substitute documents will be accepted.

Please download the below documents, complete, and upload.

- Attachment_C_-_Qualificatio...

7.8. Appendix I Lot C Pricing Schedule - All proposals for "Lot C" must download, complete and upload this document, no substitute documents will be accepted.*

Please download the below documents, complete, and upload.

- Appendix_I-Lot_C_-_Pricing_...

*Response required

7.9. Attachment D - All proposals for "Lot D" must download, complete and upload this document, no substitute documents will be accepted.

Please download the below documents, complete, and upload.

- Attachment_D_-_Qualificatio...

7.10. Appendix I Lot D Pricing Schedule - All proposals for "Lot D" must download, complete and upload this document, no substitute documents will be accepted.*

Please download the below documents, complete, and upload.

- Appendix_I-Lot_D_-_Pricing_...

*Response required

7.11. Attachment E - All proposals for "Lot E" must download, complete and upload this document, no substitute documents will be accepted.

Please download the below documents, complete, and upload.

- Attachment_E_-_Qualificatio...

7.12. Appendix I Lot E Pricing Schedule - All proposals for "Lot E" must download, complete and upload this document, no substitute documents will be accepted.*

Please download the below documents, complete, and upload.

- Appendix_I-Lot_E_-_Pricing_...

*Response required

7.13. Appendix S Security Requirements. All proposals must download, complete and upload this document, no substitute documents will be accepted.*

Please download the below documents, complete, and upload.

- 2025-RFP-0012_Appendix_S_Se...

*Response required

7.14. Please confirm using the Yes/No buttons below you will meet the County's mandatory Insurance Requirements.*

Appendix G

2025-RFP-0012 Election Management System

Insurance Requirements for Contractors

A. VERIFICATION OF COVERAGE. CONTRACTOR shall furnish the COUNTY with certificates evidencing coverage required below. Copies of required endorsements must be attached to provided certificates. The County Risk Manager may approve self-insurance programs in lieu of required policies of insurance if, in the opinion of the Risk Manager, the interests of the COUNTY and the general public are adequately protected. All certificates, evidences of self-insurance, and additional insured endorsements are to be received and approved by the County before performance commences. The COUNTY reserves the right to require that CONTRACTOR provide complete, certified copies of any policy of insurance offered in compliance with these specifications.

B. MINIMUM SCOPE OF INSURANCE. Coverage shall be at least as broad as:

1. GENERAL LIABILITY: Insurance Services Office's Commercial General Liability occurrence coverage form CG 0001. Including, but not limited to Premises/Operations, Products/Completed Operations, Contractual, and Personal & Advertising Injury, without additional exclusions or limitations, unless approved by the County Risk Manager.

2. AUTOMOBILE LIABILITY: Insurance Services Office's Commercial Automobile Liability coverage form CA 0001.

a. Commercial Automobile Liability: auto coverage symbol "1" (any auto) for corporate/business owned vehicles. If there are no owned or leased vehicles, symbols 8 and 9 for non-owned and hired autos shall apply.

b. Personal Lines automobile insurance shall apply if vehicles are individually owned. Without limiting CONTRACTOR's indemnification, CONTRACTOR shall procure and maintain for the duration of the Agreement, insurance against claims for injuries to persons or damages to property which may arise from or in connection with the performance of the Agreement by the CONTRACTOR, its agents, representatives or employees. COUNTY shall retain the right at any time to review the coverage, form, and amount of the insurance required hereby. If in the opinion of the County Risk Manager, insurance provisions in these requirements do not provide adequate protection for COUNTY and for members of the public, COUNTY may require CONTRACTOR to obtain insurance sufficient in coverage, form and amount to provide adequate protection. COUNTY's requirements shall be reasonable but shall be imposed to assure protection from and against the kind and extent of risks that exist at the time a change in insurance is required.

3. WORKERS' COMPENSATION: Statutory requirements of the State of California and Employer's Liability Insurance.

4. PROFESSIONAL LIABILITY with TECHNOLOGY ERRORS AND OMISSIONS: Insurance covering liability for losses resulting or arising from negligent acts, errors or omissions in rendering computer or information technology services or from programming errors, software performance, data damage/destruction/corruption; including without limitation, failure to perform, and loss from unauthorized access, unauthorized use, virus transmission, denial of service and loss of income from network security failures in connection with the services provided under an Agreement. The minimum limits shall be not less than $2,000,000 per claim and aggregate.

5. UMBRELLA or Excess Liability policies are acceptable where the need for higher liability limits is noted in the Minimum Limits of Insurance and shall provide liability coverages that at least follow form over the underlying insurance requirements where necessary for Commercial General Liability, Commercial Automobile Liability, Employers' Liability, and any other liability coverage (other than Professional Liability) designated under the Minimum Scope of Insurance.

C. MINIMUM LIMITS OF INSURANCE. CONTRACTOR shall maintain limits no less than:

1. General Liability shall be on an Occurrence basis (as opposed to Claims Made basis). Minimum limits and structure shall be:

a. Building Trades General Aggregate: $2,000,000

b. Products Comp/Op Aggregate: $2,000,000

c. Personal & Adv. Injury: $1,000,000

d. Each Occurrence: $2,000,000

e. Fire Damage: $ 100,000

f. Contractors and Contractors engaged in other projects of construction shall have their general liability Aggregate Limit of Insurance endorsed to apply separately to each job site or project, as provided for by Insurance Services Office form CG-2503 Amendment-Aggregate Limits of Insurance (Per Project).

2. AUTOMOBILE LIABILITY:

a. Commercial Automobile Liability for Corporate/business owned vehicles including non-owned and hired, $1,000,000 Combined Single Limit.

b. Personal Lines Automobile Liability for Individually owned vehicles, $250,000 per person, $500,000 each accident, $100,000 property damage.

3. WORKERS' COMPENSATION: Statutory.

4. EMPLOYER'S LIABILITY: $1,000,000 per accident for bodily injury or disease.

5. PROFESSIONAL LIABILITY OR TECHNOLOGY ERRORS AND OMISSIONS LIABILITY: $2,000,000 per claim and aggregate.

D. DEDUCTIBLES AND SELF-INSURED RETENTION. Any deductibles or self-insured retention that apply to any insurance required by this Agreement must be declared and approved by the COUNTY.

E. CLAIMS MADE PROFESSIONAL LIABILITY INSURANCE. If professional liability coverage is written on a Claims Made form:

1. The "Retro Date" must be shown, and must be on or before the date of the Agreement or the beginning of Agreement performance by CONTRACTOR.

2. Insurance must be maintained and evidence of insurance must be provided for at least one (1) year after completion of the Agreement.

3. If coverage is cancelled or non-renewed, and not replaced with another claims made policy form with a "Retro Date" prior to the contract effective date, the CONTRACTOR must purchase "extended reporting" coverage for a minimum of one (1) year after completion of the Agreement.

F. OTHER INSURANCE PROVISIONS.The insurance policies required in this Agreement are to contain, or be endorsed to contain, as applicable, the following provision:

1. All Policies:

a. ACCEPTABILITY OF INSURERS: Insurance is to be placed with insurers with a current A.M. Best's rating of no less than A-VII. The County Risk Manager may waive or alter this requirement, or accept self-insurance in lieu of any required policy of insurance if, in the opinion of the Risk Manager, the interests of the COUNTY and the general public are adequately protected.

b. MAINTENANCE OF INSURANCE COVERAGE: The Contractor shall maintain all insurance coverages and limits in place at all times and provide the County with evidence of each policy's renewal ten (10) days in advance of its anniversary date. Contractor is required by this Agreement to immediately notify County if they receive a communication from their insurance carrier or agent that any required insurance is to be canceled, non-renewed, reduced in scope or limits or otherwise materially changed. Contractor shall provide evidence that such cancelled or non-renewed or otherwise materially changed insurance has been replaced or its cancellation notice withdrawn without any interruption in coverage, scope or limits. Failure to maintain required insurance in force shall be considered a material breach of the Agreement.

G. COMMERCIAL GENERAL LIABILITY AND/OR COMMERCIAL AUTOMOBILE LIABILITY

1. ADDITIONAL INSURED STATUS: The COUNTY, its officers, directors, officials, employees, and volunteers are to be endorsed as additional insureds as respects: liability arising out of activities performed by or on behalf of the CONTRACTOR; products and completed operations of the CONTRACTOR; premises owned, occupied or used by the CONTRACTOR; or automobiles owned, leased, hired or borrowed by the CONTRACTOR. The coverage shall contain no endorsed limitations on the scope of protection afforded to the COUNTY, its officers, directors, officials, employees, or volunteers.

2. CIVIL CODE PROVISION: Coverage shall not extend to any indemnity coverage for the active negligence of the additional insured in any case where an agreement to indemnify the additional insured would be invalid under Subdivision (b) of Section 2782 of the Civil Code.

3. PRIMARY INSURANCE: For any claims related to this Agreement, the CONTRACTOR's insurance coverage shall be endorsed to be primary insurance as respects the COUNTY, its officers, officials, employees and volunteers. Any insurance or self-insurance maintained by the COUNTY, its officers,

directors, officials, employees, or volunteers shall be excess of the CONTRACTOR's insurance and shall not contribute with it.

4. SEVERABILITY OF INTEREST: The CONTRACTOR's insurance shall apply separately to each insured against whom claim is made or suit is brought, except with respect to the limits of the insurer's liability.

5. SUBCONTRACTORS: CONTRACTOR shall be responsible for the acts and omissions of all its subcontractors and additional insured endorsements as provided by CONTRACTORs subcontractor.

H. WORKERS' COMPENSATION. Workers' Compensation Waiver of Subrogation: The workers' compensation policy required hereunder shall be endorsed to state that the workers' compensation carrier waives its right of subrogation against the COUNTY, its officers, directors, officials, employees, agents or volunteers, which might arise by reason of payment under such policy in connection with performance under this Agreement by the CONTRACTOR. Should CONTRACTOR be self-insured for workers' compensation, CONTRACTOR hereby agrees to waive its right of subrogation against COUNTY, its officers, directors, officials, employees, agents or volunteers.

I. PROPERTY. Course of Construction (COC) Waiver of Subrogation: Any Course of Construction (COC) policies maintained by the CONTRACTOR in performance of the Agreement shall contain the following provisions:

1. The COUNTY shall be named as loss payee.

2. The Insurer shall waive all rights of subrogation against the COUNTY.

3. Inland Marine Waiver of Subrogation: Any Inland Marine insurance policies maintained by the CONTRACTOR in performance of the Agreement shall be endorsed to state that the insurer shall waive all rights of subrogation against the COUNTY.

J. NOTIFICATION OF CLAIM. If any claim for damages is filed with CONTRACTOR or if any lawsuit is instituted against CONTRACTOR, that arise out of or are in any way connected with CONTRACTOR's performance under this Agreement and that in any way, directly or indirectly, contingently or otherwise, affect or might reasonably affect COUNTY, CONTRACTOR shall give prompt and timely notice thereof to COUNTY. Notice shall be prompt and timely if given within thirty (30) days following the date of receipt of a claim or ten (10) days following the date of service of process of a lawsuit.

☐ Yes
☐ No

*Response required

7.15. Confidential Company Information (if applicable)

The County will treat all information submitted in a proposal as available for public inspection once the County has selected a contractor. If you believe that you have a legally justifiable basis under the California Public Records Act (Government Section 6250 et. seq.) for protecting the confidentiality of any information contained within your proposal, you must identify any such information, together with the

legal basis of your claim in your proposal, and present such information in this section as part of your response package. Click "File Upload" below to upload your confidential documents.

7.16. Contractor Certification of Compliance*

WHEREAS it is in the best interest of Sacramento County that those entities with whom the County does business demonstrate financial responsibility, integrity and lawfulness, it is inequitable for those entities with whom the County does business to receive County funds while failing to pay court-ordered child, family and spousal support which shifts the support of their dependents onto the public treasury.

Therefore, in order to assist the Sacramento County Department of Child Support Services in its efforts to collect unpaid court-ordered child, family and spousal support orders, the following certification must be provided by all entities with whom the County does business:

CONTRACTOR hereby certifies that either:

☐ (a) the CONTRACTOR is a government or non-profit entity (exempt)
☐ (b) the CONTRACTOR has no Principal Owners (25% or more) (exempt)
☐ (c) each Principal Owner (25% or more), does not have any existing child support orders
☐ (d) CONTRACTOR'S Principal Owners are currently in substantial compliance with any court-ordered child, family and spousal support order, including orders to provide current residence address, employment information, and whether dependent health insurance coverage is available. If not in compliance, Principal Owner has become current or has arranged a payment schedule with the Department of Child Support Services or the court.
*Response required

7.17. Contractor Certification of Compliance Cont...*

New CONTRACTOR shall certify that each of the following statements is true:

A. CONTRACTOR has fully complied with all applicable state and federal reporting requirements relating to employment reporting for its employees; and

B. CONTRACTOR has fully complied with all lawfully served wage and earnings assignment orders and notices of assignment and will continue to maintain compliance.

NOTE: Failure to comply with state and federal reporting requirements regarding a contractor's employees or failure to implement lawfully served wage and earnings assignment orders or notices of assignment constitutes a default under the contract; and failure to cure the default within 90 days of notice by the County shall be grounds for termination of the contract. Principal Owners can contact the Sacramento Department of Child Support Services at 1-866-901-3212, by writing to P.O. Box 269112, Sacramento, 95826-9112, or via the Customer Connect website at www.childsup.ca.gov.

☐ Yes
☐ No

*Response required

7.18. Solicitation Exceptions*

Please list all exceptions below referring to name of specific section and (where applicable) paragraph, subsection number, or other identifier. For each exception, please quote the statement(s) to which you are taking an exception, for reference during bid analysis. Exceptions considered excessive or affecting vital terms, conditions or specifications may reduce or eliminate your prospects for award.

Please include the following with every exception (if your company has no exceptions, type "**N/A**" in this field):

A. Page #

B. Section#/Title

C. Exception Description

*Response required

7.19. Non-Collusion Affidavit*

I state that I am authorized to make this affidavit on behalf of my firm, and its owners, directors, and officers. I am the person responsible in my firm for the price(s) and the amount of this proposal.

I state that:

A. The price(s) and amount of this proposal have been arrived at independently and without consultation, communication or agreement with any other contractor, bidder or potential bidder, except as disclosed below in the exceptions field (accept with exceptions).

B. That neither the price(s) nor the amount of this proposal, and neither the approximate price(s) nor approximate amount of this proposal, have been disclosed to any other firm or person who is a bidder or potential bidder, and that they will not be disclosed before proposal opening.

C. No attempt has been made or will be made to induce any firm or person to refrain from submitting a proposal on this contract, or to submit a proposal higher than this proposal, or to submit any intentionally high or noncompetitive proposal/bid or other form of complementary proposal.

D. The proposal by my firm is made in good faith and not pursuant to any agreement or discussion with, or inducement from, any firm or person to submit a complementary or other noncompetitive proposal.

E. My firm, its affiliates, subsidiaries, officer, directors and employees are not currently under investigation by any governmental agency and have not in the last five years been convicted of or found liable for any act prohibited by State or Federal law in any jurisdiction, involving conspiracy or collusion with respect to bidding on any public contract.

F. No current or previous employee of the County of Sacramento (employed by County of Sacramento within the last calendar year) has been involved or is currently involved in any

manner, directly or indirectly, with bidder's response or considerations in responding to this request.

I understand and my firm understands and acknowledges that the above representations are material and important, and will be relied upon by the County of Sacramento in awarding the contract(s) for which this proposal is submitted. I understand and my firm understands that any misstatement in this affidavit is and shall be treated as fraudulent concealment from the County of Sacramento of the true facts relating to the submission of proposals/bids for this contract. Any violation of this certification shall render bidder's response invalid. In such a case, bidder's response will be immediately disqualified.

☐ Please confirm

*Response required

7.20. Customer References*

Include three (3) Company references here:

Reference 1

- Agency/Company Name
- Project Name
- Project Size (Cost/Unit & Total Cost)
- Project Type
- Year Completed
- Name of Project Manager
- Email Address & Phone Number
- Brief Physical Description of Project

Reference 2

- Agency/Company Name
- Project Name
- Project Size (Cost/Unit & Total Cost)
- Project Type
- Year Completed
- Name of Project Manager
- Email Address & Phone Number
- Brief Physical Description of Project

Reference 3

- Agency/Company Name
- Project Name
- Project Size (Cost/Unit & Total Cost)
- Project Type
- Year Completed
- Name of Project Manager
- Email Address & Phone Number
- Brief Physical Description of Project

*Response required

7.21. Risk Assessment Questionnaire*

Please download the below documents, complete, and upload.

- Risk_Assessment_Questionnai...

*Response required

7.22. Iran Contracting Act Disclosure Form *

(California Public Contract Code, sections 2202-2208)

When responding to a bid or proposal or executing a contract or renewal for a County of Sacramento contract for goods or services of $1,000,000 or more, a vendor must either:

A. certify it is not on the current list of persons engaged in investment activities in Iran created by the California Department of General Services ("DGS") pursuant to Public Contract Code section 2203(b) and is not a financial institution extending twenty million dollars ($20,000,000) or more in credit to another person, for 45 days or more, if that other person will use the credit to provide goods or services in the energy sector in Iran and is identified on the current list of persons engaged in investment activities in Iran created by DGS; or

B. demonstrate it has been exempted from the certification requirement for that solicitation or contract pursuant to Public Contract Code section 2203(c) or (d).

To comply with this requirement, please select **one** of the options below. Please note: California law establishes penalties for providing false certifications, including civil penalties equal to the greater of $250,000 or twice the amount of the contract for which the false certification was made; contract termination; and three-year ineligibility to bid on contracts. (Public Contract Code section 2205.)

OPTION #1 - CERTIFICATION

I certify I am duly authorized to execute this certification on behalf of the vendor/financial institution, and the vendor/financial institution is not on the current list of persons engaged in investment activities in Iran created by DGS and is not a financial institution extending twenty million dollars ($20,000,000) or more in credit to another person/vendor, for 45 days or more, if that other person/vendor will use the credit to provide goods or services in the energy sector in Iran and is identified on the current list of persons engaged in investment activities in Iran created by DGS.

OPTION #2 – EXEMPTION

Pursuant to Public Contract Code sections 2203(c) and (d), a public entity may permit a vendor/financial institution engaged in investment activities in Iran, on a case-by-case basis, to be eligible for, or to bid on, submit a proposal for, or enters into or renews, a contract for goods and services. If you have obtained an exemption from the certification requirement under the Iran Contracting Act, please select "EXEMPTION" below, and attach documentation demonstrating the exemption approval with your electronic submission.

☐ Certification
☐ Exemption
*Response required

8. Sacramento County Standard Terms and Conditions

A. BID/QUOTE/PROPOSAL TERMS AND CONDITIONS: All of the terms and conditions of the bid, quote, or proposal against which this agreement is applied, are hereby incorporated.

B. SALES TAX NOT INCLUDED: Unless otherwise definitely specified, the unit prices do not include California sales and use tax or Sacramento County sales and use tax.

C. INVOICING & PAYMENT: Upon timely submission of itemized invoices by vendor/contractor, payment shall be made per the terms of this agreement and for the prices stipulated for supplies delivered and/or services rendered after inspection and acceptance. Deductions, if any, may be made from payment as provided by this agreement. Payment on partial deliveries may be made whenever amounts due so warrant or when requested by the vendor/contractor and approved by the County. In connection with any cash (payment) discount specified in this agreement, time will be computed from the date of complete delivery of the supplies, equipment or services as specified, or from date correct invoices are received by County, whichever is later. For the purpose of earning the discount, payment is deemed to be made on the date of mailing of the County warrant or check.

D. HOLD HARMLESS: The vendor/contractor shall hold the County of Sacramento, its officers, agents, servants and employees harmless from liability of any nature or kind because of use of any copyrighted, or uncopyrighted composition, secret process, patented or unpatented invention, articles or appliances furnished or used under this order, and agrees to defend, at his own expense, any and all actions brought against the County of Sacramento or himself because of the unauthorized use of such articles.

E. DEFAULT BY VENDOR/CONTRACTOR: In case of default by vendor/contractor, the County of Sacramento may procure the articles or services from other sources and may deduct from any monies due, or that may thereafter become due to the vendor/contractor, the difference between the price named in the contract or purchase order and actual cost thereof to the County of Sacramento. Prices paid by the County shall be considered the prevailing market price at the time such purchase is made. Periods of performance may be extended if the facts as to the cause of delay justify such extension in the opinion of the Purchasing Agent.

F. RIGHT TO AUDIT: The County of Sacramento reserves the right to verify, by examination of vendor/contractor's records, all invoiced amounts when firm prices are not set forth in the purchase agreement.

G. ASSIGNMENT: This contract or purchase order is not assignable by vendor/contractor either in whole or in part, without the prior written approval of the County.

H. SUCCESSORS: This agreement shall be binding upon to the benefit of the successors and assigns of the respective parties hereto.

I. F.E.T. EXEMPTION: County is exempt from Federal excise tax pursuant to Internal Revenue Code 26 U.S.C. §4221(a)(4).

J. CHARGES NOT INCLUDED ON FACE NOT ACCEPTABLE: No charge will be accepted for packing, boxing, or cartage, except as specified in the Notice of Award. Freight collect shipments will not be accepted. Merchandise will not be accepted if payment is to be made at the time of delivery.

K. TITLE/RISK OF LOSS: Title, ownership, and risk of loss or damage of the Goods shall be in accordance with Delivery/FOB Terms on Page 1 of the contract. The Goods are delivered to, inspected and accepted by County, except when such loss or damage is due to the fault or negligence of County.

L. ALL UNDERSTANDINGS IN WRITING: It is mutually understood and agreed that no alteration or variation of price, quantity, supplies and/or services, and any terms of this contract shall be valid unless made in writing and signed by the parties hereto, and that no oral understandings or agreements shall be binding.

M. FORCE MAJEURE: The parties will not be held liable for delays or failure in fulfillment of conditions of purchase order or contract resulting from events beyond the reasonable control of such parties. Such events include, but are not be limited to strikes, riots, acts of war, epidemics, acts of government, fire, power failures, nuclear events, earthquakes, acts of terrorism, severe weather events and other disasters.

N. VENDOR/CONTRACTOR TERMS AND CONDITIONS: County's standard terms and conditions shall govern any contract awarded. If, after award of contract, vendor/contractor provides additional terms or conditions, and there is a conflict between the terms and conditions of the parties, County's terms and conditions shall govern.

O. INFORMATION TECHNOLOGY ASSURANCES: Vendor/contractor shall take all reasonable precautions to ensure that any hardware, software, and/or embedded chip devices used by vendor/contractor in the performance of services under this agreement, other than those owned or provided by County, shall be free from viruses. Nothing in this provision shall be construed to limit any rights or remedies otherwise available to County under this agreement.

P. COMPLIANCE WITH FAMILY SUPPORT ORDERS: Vendor/contractor hereby certifies that it's principal owner(s) is in substantial compliance with Sacramento County's DCSS Program, federal and state laws regarding lawfully served orders for child, family and spousal support, including wage reporting and assignment of wages. (Failure to comply with such orders and cure the default within 90 days of notice by the County shall be grounds for termination of the contract or purchase order.

Q. COMPLIANCE WITH ALL LAWS, LICENSES AND PERMITS: In the performance of their duties, Vendor/contractor shall comply with all applicable federal, state, and county statutes, ordinances, regulations, directives, and laws and this contract shall be deemed to be executed within the State of California and construed with and governed by the laws of the State of California. Vendor/contractor shall possess and maintain all necessary licenses, permits, certificates and credentials required by the laws of the United States, the State of California, County of Sacramento and all other appropriate governmental agencies, including any certification and credentials required by County. Failure to comply with all laws, licenses and permits shall be deemed a breach of this Agreement and constitutes grounds for the termination of this Contract.

R. FOREIGN CURRENCY: In the event vendor invoices submitted to the County of Sacramento is received in foreign currency, vendor
understands and agrees the County of Sacramento will pay in US Dollars via wire, ACH, or check payment method. The County of
Sacramento's payment of US Dollars will be calculated using the currency exchange rate on the invoice

date, regardless of date paid, or received by vendor. The County of Sacramento calculates US Dollars based on the exchange rate on such invoice date provided by the Oanda currency converter site: http://www1.oanda.com/lang/en/currency/converter/.

9. Additional Terms and Conditions

9.1. Additional Terms and Conditions

Bidder Responsibility: You are expected to be thoroughly familiar with all specifications and requirements of this bid. Your failure or omission to examine any relevant form, article, site or document will not relieve you from any obligation regarding this bid. By submitting a response, you are presumed to concur with all terms, conditions and specifications of this bid unless you have specifically, by section number, raised objection.

Awards:

1. The County of Sacramento reserves the right to:
    1. award responses received on the basis of individual items, or groups of items, or on the entire list of items;
    2. reject any or all responses, or any part thereof;
    3. waive any informality in the responses; and
    4. accept the response that is in the best interest of the County. The Purchasing Agent's decision shall be final.
2. Preference for Sacramento County Products. In purchases by the County of Sacramento, price and quality being equal, preference must be given to Sacramento County products (Charter of the County of Sacramento, sec. 83); also, ". . . preference must be given to the lowest responsible local bidder offering to supply such items for purchase which are raised, grown, manufactured, fabricated, processed or assembled in Sacramento County . . ." (Sacramento County Code, sec. 2.56.060).
3. Preference for California-made materials. Pursuant to Sections 4330-4333 of the Government Code, the County, in awarding the purchase, must prefer supplies partially manufactured, grown or processed in California, price, fitness and quality being equal. In order to receive preference, responses must clearly specify the item(s) for which preference is claimed and the preference applicable.

Taxes:

1. Include any sales, use, or federal excise taxes in your response as separate line item(s).
2. If your company is outside California and collects sales tax, please state the amount as a separate item if the County is to remit the tax.
3. Items purchased for resale will show the County's resale permit number on the purchase order.
4. Exemption certificates will be furnished when federal excise tax is exempted.

Brand Names: Brand names and numbers, when used, are for reference to indicate the character or quality desired. Equal items will be considered, provided your offer clearly describes the article. Offers for equal items must state the brand and number, or level of quality. The determination of the Purchasing Agent as to what items are equal is final and conclusive. When brand, number, or level of

quality is not stated by bidder, the offer will be considered exactly as specified.

Samples: Samples of articles, when required, must be furnished free of cost. Samples may be retained for future comparison. Samples which are not destroyed by testing or which are not retained for future comparison will be returned upon request at your expense.

Termination:

1. County may terminate any resulting contract without cause upon thirty (30) days written notice to the other party. Notice shall be deemed served on the date of mailing. If notice of termination for cause is given by County to contractor and it is later determined that contractor was not in default or the default was excusable, then the notice of termination shall be deemed to have been given without cause pursuant to this paragraph (A).
2. County may terminate any resulting contract for cause immediately upon giving written notice to contractor, should contractor materially fail to perform any of the covenants contained in resulting contract in the time and/or manner specified. In the event of such termination, County may proceed with the work in any manner deemed proper by County. If notice of termination for cause is given by County to contractor and it is later determined that contractor was not in default or the default was excusable, then the notice of termination shall be deemed to have been given without cause pursuant to paragraph (A) above.
3. County may terminate or amend any resulting contract immediately upon giving written notice to contractor, 1) if advised that funds are not available from external sources for resulting contract or any portion thereof, including if distribution of such funds to the County is suspended or delayed; 2) if funds for the services and/or programs provided pursuant to resulting contract are not appropriated by the State; 3) if funds in County's yearly proposed and/or final budget are not appropriated by County for resulting contract or any portion thereof; or 4) if funds that were previously appropriated for resulting contract are reduced, eliminated, and/or re-allocated by County as a result of mid-year budget reductions.
4. If any resulting contract is terminated under paragraph A or C above, contractor shall only be paid for any services completed and provided prior to notice of termination. In the event of termination under paragraph a or c above, contractor shall be paid an amount which bears the same ratio to the total compensation authorized by resulting contract as the services actually performed bear to the total services of contractor covered by resulting contract, less payments of compensation previously made. In no event, however, shall County pay contractor an amount which exceeds a pro rata portion of the resulting contract total based on the portion of the resulting contract term that has elapsed on the effective date of the termination.
5. Contractor shall not incur any expenses under any resulting contract after notice of termination and shall cancel any outstanding expenses obligations to a third party that contractor can legally cancel.

Public Agency Participation: It is intended that any other public agency including those identified in the solicitation (i.e., city, district, public authority, public agency, municipality and other political sub-

division or public corporation of California) located in California shall have the option to participate in any award made as a result of this solicitation. The County of Sacramento shall incur no financial responsibility in connection with orders issued or delivered by another public agency. Each public agency using this contract shall accept sole and full responsibility for placing of orders and making payments to the contractor. In addition to the above, the contractor shall provide the same level of indemnification and insurance protection to each of the participating agencies ordering products and/or services under any award made as a result of this solicitation.

Out of State Vendors Providing Services to the County of Sacramento: Recent state legislation requires the County to withhold seven percent (7%) of all income paid to certain independent contractors who do not reside in California. (Rev. & Tax. Code §18662; Cal. Admin. Code §§18662-1-18662-14.) This provision does not apply if the total amount paid for services in a given year is less than $1,500. It also does not apply if the contractor is: a) a corporation with a principal place of business in California; b) a partnership with a permanent place of business in California; c) a corporation qualified through the Secretary of State to do business in California; or d) an individual with a permanent residence in the State of California.
FTB Waiver -The contractor can apply to the FTB for a waiver from this withholding requirement. An FTB waiver will generally be granted when the nonresident contractor has a current history of filing California tax returns and/or is currently making estimated tax payments to the FTB. An FTB waiver request is made on FTB Form 588, which can be faxed to the FTB at (916) 845-4831.

Payments (E-Payables)
The County of Sacramento has partnered with Bank of America to implement a card payment program, ePayables, offered to County's suppliers/contractors/vendors. This preferred payment method will reduce paper waste and expedite payments to recipients. Traditional forms of payment (hardcopy checks) remain.
ePayables will not affect payment terms and conditions of any existing contract. Once an invoice is approved for payment, an electronic remittance advice will be sent to the recipient's email instead of a hardcopy check. The remittance advice will include statement-type information such as: invoice numbers, dates, and invoice amounts. Payments can be retrieved with a County designated account number assigned to the contractor. For more information, go to www.bankofamerica.com/epayablesvendors or contact the Sacramento County Department of Finance at 916-874-7411 (epayables@saccounty.gov).

Late Payments: Should the county be late in making payments against invoices submitted correctly and timely, any interest levied by the vendor for payments shall be limited by the Section 926.10 of the California Government Code.

Reports:

1. CONTRACTOR shall, without additional compensation therefor, make fiscal, program evaluation, progress, and such other reports as may be reasonably required by COUNTY concerning CONTRACTOR's activities as they affect the contract duties and purposes herein. COUNTY shall explain procedures for reporting the required information.

2. CONTRACTOR agrees that, pursuant to Government Code section 7522.56, CONTRACTOR shall make best efforts to determine if any of its employees or new hires providing direct services to the county are members of the Sacramento County Employees' Retirement System (SCERS). CONTRACTOR further agrees that it shall make a report bi-annually (due no later than January 31st and July 31st) to the COUNTY with a list of its employees that are members of SCERS along with the total number of hours worked during the previous 6 months. This report shall be forwarded to where Notice is sent pursuant to resulting contract.

9.2. Indemnification (services)

To the fullest extent permitted by law, for work or services provided under this Agreement, CONTRACTOR shall indemnify, defend, and hold harmless County, its governing Board, officers, directors, officials, employees, and authorized volunteers and agents, (individually an "Indemnified Party" and collectively "Indemnified Parties"), from and against any and all claims, demands, actions, losses, liabilities, damages, and all expenses and costs incidental thereto (collectively "Claims"), including cost of defense, settlement, arbitration, expert fees, and reasonable attorneys' fees, resulting from injuries to or death of any person, including employees of either party hereto, and damage to or destruction of property, or loss of use or reduction in value thereof, including the property of either party hereto, and recovery of monetary losses incurred by County directly attributable to the performance of CONTRACTOR, arising out of, pertaining to, or resulting from the negligent acts, errors, omissions, recklessness, or willful misconduct of CONTRACTOR, its employees, or CONTRACTOR's subcontractors at any tier, or any other party for which CONTRACTOR is legally liable under law.

The right to defense and indemnity under this Section arises upon occurrence of an event giving rise to a Claim and, thereafter, upon tender in writing to CONTRACTOR. CONTRACTOR shall defend Indemnified Parties with counsel reasonably acceptable to County. Notwithstanding the foregoing, County shall be entitled, on its own behalf, and at the expense of CONTRACTOR, to assume control of its defense or the defense of any Indemnified Party in any legal action, with counsel reasonably selected by it. Should County elect to initially assume control of its defense, or the defense of any Indemnified Party, it does so without prejudice to its right to subsequently request that CONTRACTOR thereafter assume control of the defense and pay all reasonable attorneys' fees and costs incurred thereby.

This indemnity obligation shall not be limited by the types and amounts of insurance or self-insurance maintained by CONTRACTOR or CONTRACTOR's subcontractors at any tier.

Nothing in this indemnity obligation shall be construed to create any duty to, any standard of care with reference to, or any liability or obligation, contractual or otherwise, to any third party.

The provisions of this indemnity obligation shall survive the expiration or termination of the Agreement.

10. Environmental Purchasing Policy

COUNTY OF SACRAMENTO

ENVIRONMENTALLY PREFERABLE PURCHASING

GUIDELINES AND PROCEDURES

1. PURPOSE

The purpose of the Environmentally Preferable Purchasing ("EPP") policy is to support the purchase of recycled and environmentally preferable products, and reduce waste to minimize environmental impacts of our work. The County of Sacramento recognizes that employees can make a difference in favor of environmental stewardship through contractual relationships and purchasing practices. The types of products and services purchased by the County of Sacramento has a big impact on our environment, our residents, and our employees.

The purchase of environmentally preferable products and services shall be evaluated in all procurements whenever they perform satisfactorily and are available at a reasonably competitive price. Where possible this includes the reduction or elimination of single use products. Additionally, state law now requires the County to purchase Recovered Organic Waste Products and recycled content paper.

2. GOALS

The goals of this policy are to:

• Protect and conserve natural resources, water and energy;

• Minimize the County's contribution to climate change, pollution, and solid waste disposal;

• Provide guidance for County departments on environmentally preferable purchasing;

• Comply with State requirements as contained in 14 CCR Division 7, Chapter 12, Article 12 (SB 1383 procurement regulations). SB 1383 (2016) requires:

o Procurement of Recovered Organic Waste Products to support Organic Waste disposal reduction targets and to support markets for products made from recycled and recovered Organic Waste materials; and

o Procurement of Recycled-Content Paper Products and Recycled-Content Printing and Writing Paper.

• Comply with directives in the County of Sacramento Climate Emergency Resolution No. 2020-0856; and

• Comply with directives in the County of Sacramento Climate Action Plan.

3. MANDATORY PROCUREMENT PRACTICES

In cooperation with their internal and external customers, the County of Sacramento (throughout this document the term "County" includes all County of Sacramento agencies, departments, and divisions) shall purchase the following recycled products:

A. Printing and Writing Papers, including all imprinted letterhead paper, envelopes, copy paper and business cards. These shall contain a minimum of 30% postconsumer recycled content. (Refer to Attachment 3 – SB 1383 Recycled-Content Paper Procurement Requirements)

B. Paper Products, including janitorial supplies, shop towels, hand towels, facial tissue, toilet paper, seat covers, corrugated boxes, file boxes, hanging file folders and other products comprised largely of paper. (Refer to Attachment 3 – SB 1383 Recycled-Content Paper Procurement Requirements)

C. Recovered Organic Waste Products, including SB 1383 Eligible Compost, SB 1383 Eligible Mulch, SB 1383 Eligible Renewable Gas, and SB 1383 Eligible Electricity Procured from Biomass Conversion. (Refer to Attachment 4 – SB 1383 Organic Waste Product Procurement Requirements)

4. PREFERRED PROCUREMENT PRACTICES

A. Product Categories

In cooperation with their internal and external customers, the County shall at a minimum, evaluate the following environmentally preferred product categories and purchase them whenever practical:

1. Remanufactured laser printer toner cartridges and remanufactured or refillable ink-jet cartridges

2. Janitorial and cleaning products with County recognized Ecolabels

3. Re-refined antifreeze, including on-site antifreeze recycling

4. Re-refined lubricating and hydraulic oils

5. Renewable CNG and diesel fuels in place of traditional CNG and diesel fuels for County vehicles in on- and off-road fleets using these fuels (Final Draft Climate Action Plan Policies GOV-FL-02 and GOV-FL-03).

6. Recycled plastic outdoor-wood substitutes, including plastic lumber, benches, fencing, signs and posts

7. Recycled content construction, building and maintenance products, including plastic lumber, carpet, tiles, and insulation

8. Re-crushed cement concrete aggregate and asphalt

9. Cement and asphalt concrete containing tire rubber, glass cullet, recycled fiber, plastic, fly ash or other alternative products, or low carbon concrete

10. Re-treaded tires and products made from recycled tire rubber including rubberized asphalt, playground surfaces and fatigue mats.

11. Recycled content paint

12. Landscaping that fits the natural ecosystems and fosters soil health, reduces runoff and pollution, prevents and reuses plant waste, and conserves water and other natural resources

13. Energy efficient appliances, lighting, and building materials

14. Water efficient products where available, including for upgrades or refurbishments

15. Furniture made with recycled content to promote waste diversion and furniture that does not include certain chemical additives to improve indoor air quality and employee and resident health

16. EPEAT registered technology and electronic products

17. Other products or services that are available in the marketplace or as designated by General Services

B. Sustainability Considerations

Sustainability considerations by County employees responsible for purchasing decisions and in furtherance of this policy, include but are not limited to:

1. Third-party environmental certifications as approved by the State of California Third Party Environmental Certifications by Category and/or the Environmental Protection Agency Recommendations of Specifications, Standards, and Ecolabels for Federal Purchasing

2. Opportunities for product source reduction

3. Product life-cycle impacts and costs

4. Greenhouse gas emissions and compatibility with the carbon neutrality goals in Climate Emergency Resolution 2020-0856 (this may factor into the location and transportation of products or services)

5. Equity and environmental justice impacts

6. Pollutant releases in manufacturing, transport, and use of products, and related services

7. Toxicity, especially the use of persistent, bio-accumulative and toxic chemicals

8. Energy and water consumption considerations, in product production and life-cycle, and in the delivery of services

9. Impacts on natural resources, biodiversity and habitat

10. Consideration of impacts on County resident and employee health

C. Fiscal Considerations

Fiscal considerations by County employees responsible for purchasing decisions and in furtherance of this policy include, but are not limited to:

1. Availability of environmentally preferable products and services in the marketplace and pricing compared to less desirable alternatives

2. Use reduction opportunities Countywide

3. Life-cycle cost assessment to identify the lowest total life-cycle cost to the County, including: performance, durability, repairability, disposal, and replacement costs

4. Opportunities to leverage buying power for Countywide or cross departmental purchases where practical

5. Impacts on County staff time and labor

6. Long-term financial or other market changes

5. WASTE PREVENTION PRACTICES

All County employees are encouraged to reduce their consumption of resources by incorporating the following practices into their daily activities and operations. Accomplishment of these activities will be through appropriate staff diligence and resources such as County newsletters and the County Public Information Office ("PIO").

A. Consider durability and repairability of products prior to purchase

B. Conduct routine maintenance on products or equipment to increase their useful life

C. Use duplex features on printers and copiers, and specify duplex on print jobs

D. Create electronic letterhead for Countywide use

E. Send and store information electronically when possible

F. Review record retention policies and implement document imaging systems

G. Identify and eliminate single use products where co-alternatives are available

H. Use surplus County property in lieu of new purchases when available

I. Use interdepartmental or interagency loans or other pooled resources in lieu of new purchases when practical

J. Other waste prevention practices that further the goals of this policy

6. RESPONSIBILITIES

A. County Agencies, Departments, and Divisions

All County agencies, departments, and divisions are responsible for the implementation of this policy and shall:

1. Practice waste prevention and reduction whenever possible by reducing the purchase of items that cannot be recycled locally, and by reusing items as much as possible.

2. Continue to utilize recycling programs and expand programs where possible.

3. Procure recycled or environmentally preferable products and services whenever practical.

4. Develop, evaluate and maintain information about environmentally preferable and/or recycled products containing the maximum practical amount of recycled materials. Cross-share information with other departments when potential shared use of a product exists.

5. Develop specifications used in public bidding aimed at eliminating barriers to recycled-content or environmentally preferable products, such as outdated or overly stringent product specifications and specifications not related to product performance.

6. Develop specifications that include environmentally preferable attributes where practical or available and where the requirement does not unduly restrict competition.

7. Ensure that procurement documents issued by the departments require environmental preferred alternatives whenever practical.

8. Educate and promote this policy through appropriate staff and the use of department communications, such as PIOs, newsletters, special events, etc. This should include documentation of successes, challenges, changes, and goals, etc.

9. Provide the Department of General Services, Contracts and Purchasing Services Division ("CAPSD") as directed by the Recordkeeping Designee with information on recycling activities, recycling programs, recycled-content purchases, and SB 1383 eligible purchases.

10. Inform employees of their responsibilities under this policy and provide information on recycled products and environmental preferable procurement opportunities.

11. Submit new ideas or suggestions to CAPSD in furtherance of this policy.

B. Department of General Services

The Department of General Services, CAPSD shall:

1. Maintain and use information, furnished by its customers, about environmentally preferable and recycled products containing the maximum practical amount of recycled materials and encourage the County to purchase such products whenever possible.

2. Provide County purchasers with vendor furnished information about recycled products and environmental procurement opportunities.

3. Inform vendors of the County's EPP Policy and include contract clauses required for SB 1383 compliance.

4. Structure applicable contracts to offer and/or feature recycled content products and services whenever possible, or as required pursuant to SB 1383.

5. Encourage development of specifications used in public bidding aimed at eliminating barriers to recycled-content products and environmentally preferable products, such as outdated or overly stringent product specifications and specifications not related to product performance.

6. Ensure all requests for proposals encourage vendors to offer recycled, or environmentally preferable products and sustainable business practices whenever practical.

7. Propose inclusion of Eco-labels or other third party certifications in contract specifications wherever practical.

8. Provide information to departments on State of California competitively procured "Buying Green" contracts that are available for County use.

9. Revise this EPP policy as needed to reflect current best practices, changes in the marketplace, innovations, revised legal requirements, or goals.

7. MANDATORY PURCHASING RECORDKEEPING RESPONSIBILITIES

A. The Department of General Services will be the responsible department and will select an employee to act as the Recordkeeping Designee that will be responsible for obtaining records pertaining to Procurement of Recovered Organic Waste Products and Recycled-Content Paper Products and Recycled-Content Printing and Writing Paper.

B. The Recordkeeping Designee will do the following to track Procurement of Recovered Organic Waste Products, Recycled-Content Paper Products, and Recycled-Content Printing and Writing Paper:

1. Maintain copies of invoices or receipts or other proof of purchase that describe the procurement of Printing and Writing Paper and Paper Products, including the volume and type of all paper purchases; and, copies of certifications and other required verifications from all departments and/or divisions procuring Paper Products and Printing and Writing Paper (whether or not they contain recycled content) and/or from the vendors providing Printing and Writing Paper and Paper Products. These records must be kept as part of Jurisdiction's documentation of its compliance with 14 CCR Section 18993.3.

2. Maintain copies of invoices or receipts or documentation evidencing procurement from all departments and divisions procuring Recovered Organic Waste Products and invoices or similar records from vendors/contractors/others procuring Recovered Organic Waste Products on behalf of the County to develop evidence of County meeting its Annual Recovered Organic Waste Product Procurement Target. These records must be kept as part of the County's documentation of its compliance with 14 CCR Section 18993.1.

3. Maintain documentation submitted by the County, Direct Service Providers, and/or vendors, including the information reported to the Recordkeeping Designee.

4. Compile an annual report on the County's direct procurement, and vendor/other procurement on behalf of the County, of Recovered Organic Waste Products, Recycled-Content Paper Products, and Recycled-Content Printing and Writing Paper, consistent with the recordkeeping requirements contained in 14 CCR Section 18993.2 for the Annual Recovered Organic Waste Product Procurement Target and 14 CCR Section 18993.4 for Recycled-Content Paper Products and Recycled-Content Printing and Writing Paper procurement. This report shall be made available to the County's Department of Waste Management and Recycling, the responsible entity for compiling the annual report to be submitted to CalRecycle pursuant to 14 CCR Division 7, Chapter 12, Article 13.

11. Web Accessibility Policy

Purpose of the Policy (Board Adopted May 19, 2009)

The County of Sacramento is committed to providing employees and the public, including individuals with disabilities, access to Web-based information and services either directly through the Web or through alternative channels.

This document states the Web Accessibility Policy for the County of Sacramento in the continued commitment to provide equal access to government services for individuals with disabilities.

Scope of this Policy

This policy applies to all Sacramento County web content whether centrally hosted and managed by the Office of Communications & Information Technology (OCIT) or hosted and managed by County agencies, departments or external service providers. Departments that provide services through contracts shall ensure that such contractors deliver their services in compliance the County of Sacramento Web Accessibility Policy

This policy applies to the presentation of information whether it is from a web page or a web application on either the Internet or the Intranet.

Policy for Web Accessibility

It shall be the policy of the County of Sacramento that all Sacramento County Web Content be designed to be accessible to and usable by people with disabilities. The County of Sacramento recognizes the importance of making its digital government services available to the largest possible audience. The County of Sacramento websites and web applications (Intranet and Internet) shall be coded to comply with the County of Sacramento Web Accessibility Standards and Usability Guidelines.

It is the responsibility of the departments and agencies Webmaster to become familiar with the County guidelines for achieving these standards and to apply these standards in designing and creating any official County of Sacramento web site.

Effective Date of this Policy

Effective date for this policy is May 30, 2009.

Known Limitations of this Policy

Individuals with (or without) disabilities access the Web with widely varying sets of capabilities, software, and hardware. While this policy does provide the standard for individuals with disabilities to access Web-based information, this policy cannot anticipate every accessibility need, due to known limitations of existing technology. There may be other circumstances, independent of technology that may limit accessibility of County websites.

While every effort will be made, it is understood that creating accessible formats for some historical documentation and graphical renderings maintained by the County may be technologically unfeasible.

Implementation of this Policy

NEW WEB PAGES & CONTENT

All new web pages, new documents and new forms posted shall comply with the standard.

EXISTING WEB PAGES & CONTENT

Existing web sites and pages must be brought into compliance with the standard as part of any substantive site additions, updates or redesign. Substantive changes include, but are not limited to, changes to navigation structure, redesign of site 'look and feel' and addition of new content areas, programs or services. Priority for implementing accessibility standards should be given to services accessed by the citizen on a frequent basis and related information such as: major policy documents and reports, forms, materials associated with public meetings, human resources information, and top level department and agency pages.

Compliance Review for this Policy

The E-Government Steering Committee or its designated representatives, the Web Accessibility Workgroup, will conduct regular reviews for compliance with this policy.

Waivers to this Policy

Any requests for waivers to the standard shall follow the current Internet Technology Policy Board (ITPB) Policy on Exceptions to Policy. Requests for waivers must present a business case expressing the undue burden that would be imposed on the agency or department.

Also, all requests for waivers must include a process to provide services or information in an alternate format.